MEMORANDUM OF AGREEMENT

BETWEEN:

THE REGIONAL MUNICIPALITY OF DURHAM

(the "Employer")

- and -

CANADIAN UNION OF PUBLIC EMPLOYEES, LOCAL 1764

(the "Union")

WHEREAS the parties have met to negotiate a renewal of the collective agreement between the parties which expired on March 31, 2024 ("Expired Collective Agreement");

AND WHEREAS the parties wish to resolve all outstanding issues between the parties;

NOW THEREFORE the parties agree as follows:

1. The parties agree that the collective agreement shall be renewed for a period of three (3) years from April 1, 2024 to March 31, 2027 ("New Collective Agreement") and shall include the amendments set out in the executed agreed to items (which were signed in counterparts and/or by the chief spokespersons on behalf of their respective teams) attached hereto as Tabs 1, 2, and 3. All other terms of the Expired Collective Agreement not expressly amended in accordance with the Memorandum of Agreement, and attachments hereto, shall be incorporated into the New Collective Agreement.

2. All adjustments to compensation are prospective in nature, unless expressly provided for in this Memorandum of Agreement and attachments hereto.

3. Retroactivity for wages will be based upon all hours paid from April 1, 2024 and shall be paid no later than ninety (90) days after the Agreement is ratified by both parties.

4. Employees whose employment has ceased since April 1, 2024 are entitled to payment of the general wage increase only for the period of April 1, 2024 to the date of cessation.

    a. Within forty-five (45) days after the date of ratification by both parties, the Region will send a communication to such employees using the last known address or email address on file. Such employees will have thirty (30) days from the date on which the letter was sent to claim the retroactive pay but not thereafter.

5. Any proposals not specifically referenced in this Memorandum of Agreement, and attachments hereto, shall be withdrawn/abandoned save and except notices in writing not expressly withdrawn.

6. Any errors or omissions in this Memorandum of Agreement or attachments hereto shall be mutually resolved by the parties.

7. The undersigned representatives of the parties do hereby agree to unanimously recommend complete acceptance of all the terms of this Memorandum of Agreement and attachments hereto to their respective principals.

IN WITNESS WHEREOF, the parties hereto have affixed their signatures on October 17, 2024.

For the Regional Municipality of Durham	**For CUPE 1764**
____________________	____________________
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[illegible]

Debbie Sloan

[illegible]

[illegible]

M. Martin

Melanie [illegible]

[illegible]

[illegible]

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[illegible]

S Collins

[illegible]

[illegible]

[illegible]

Carrie Waller

[illegible]

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TAB 1

IN THE MATTER OF NEGOTIATIONS

BETWEEN:

THE REGIONAL MUNICIPALITY OF DURHAM

(the "Employer")

- and -

THE CANADIAN UNION OF PUBLIC EMPLOYEES LOCAL 1764

(the "Union")

On July 15, 2024, the parties have agreed to the following amendments to the Collective Agreement:

1. **Amend Article 7.01(a) and (b), as indicated in bold, italics and strikethrough, as follows:**

   The Region agrees to recognize the following Union representation:

   a) Union Bargaining Committee of not more than ~~eight (8)~~ ***twelve (12)*** employees, whose function shall be to deal with matters (other than grievances) arising from or pertaining to the Collective Agreement.

   b) A Grievance Committee of not more than three (3) employees, except that the Grievance Committee may be augmented by the Union President ***or designate***.

2. **Amend Article 8.01 Step 1, as indicated in bold, italics and strikethrough as follows:**

   Differences or disputes arising between the Region and the employee shall be considered as grievances and shall be dealt with in the following manner, and all grievances shall be submitted and answered in writing, and shall state the Article(s) in dispute, the nature of the grievance, the affected employee(s) and the remedy sought. While it is agreed by the parties that grievances should be settled as early as possible in the grievance procedure, the parties also recognize the importance of discussing issues before the need for a grievance arises. ***Furthermore, if the parties reach a mutually satisfactory resolution to a grievance at any step, it shall be captured in writing.***

Step 1:

An employee having a grievance shall present it to their Steward in writing ***so the Union Steward can assess if the grievance is justified and should be submitted to the Employer.***

In the case of discipline grievances, ~~the Union Steward considers the grievance to be justified, they~~ ***the Union and employee*** shall jointly take the matter up within five (5) business days of the event giving rise to the grievance to the appropriate representative of management, who shall have five (5) business days in which to render a decision.

In the case of all other grievances, the Union and employee shall jointly take the matter up within ten (10) business days of the event giving rise to the grievance to the appropriate representative of management who shall have ten (10) business days in which to render a decision.

Failing a satisfactory settlement, the second Step of the grievance procedure shall be invoked within five (5) business days of the management's answer at Step 1.

3. **Amend Article 8.01 Step 3, as indicated in bold, italics and strikethrough, as follows:**

   The grievance shall be submitted to the Commissioner of Corporate Services, ***or designate***, who will meet with the grievor and the Grievance Committee within ten (10) business days of the date of request for such meeting. The decision shall be given within ~~seven (7)~~ ***ten*** business days from the date of such meeting. Where the grievance has a significant impact on the membership as a whole, the union may request that the matter be heard directly by the Commissioner of Corporate Services.

4. **Amend Article 8.01(c), as indicated in bold, italics and strikethrough, as follows:**

   If the parties at **Step 3** are unable to reach a satisfactory settlement, then the matter shall be ~~taken~~ **referred** to arbitration within fifteen (15) days of the step 3 response, as defined in the Ontario Labour Relations Act as amended from time to time.

5. **Amend Article 8.08, as indicated in bold and italics, as follows:**

   Whenever the Region deems it necessary to issue a ***non-disciplinary letter of counsel (NDLOC), verbal warning***, written warning, suspend or discharge an employee, the Region shall forward a copy of the ~~disciplinary~~ letter to the Secretary of the Union ***and Lead Steward,*** within five (5) days thereafter.

6. **Amend Article 11.06, as indicated in bold and italics, as follows:**

   Where an employee is transferred or promoted to a position not subject to the terms of this Agreement, they shall retain the Seniority accrued to the date of the transfer or promotion from the bargaining unit for up to ***eighteen (18) months in a twenty-four month period from the commencement of the leave*** ~~thirteen (13) months~~. If the employee is placed back into a position covered by the terms of this Agreement, their aforementioned Seniority shall be credited to them.

7. **Amend Article 15.03, as indicated in bold, italics and strikethrough, as follows:**

   No seven (7) hour shift shall be spread over more than eight (8) hours, and no eight (8) hour shift shall be spread over more than nine (9) hours, ~~with~~ ***inclusive of either one unpaid half-hour off for lunch or*** one unpaid hour off for lunch ~~in each case.~~ ***upon employee request and as approved by management.***

8. **Amend Article 15.04(i), as indicated in bold and italics, as follows:**

   Employees in Behaviour ***Support*** ~~Management~~ ~~who~~ may be scheduled to work up to nine (9) p.m. ***Training Specialists will be required to work one evening a week up to nine (9) p.m.***

9. **Amend Article 15.04(p), as indicated in bold, italics and strikethrough, as follows:**

   Program Assistants (Schedulers) in the RDPS Scheduling Office hired after January 1, 2023 may be scheduled on a twenty-four (24) hour schedule. These shifts may be scheduled between ***Sunday to Saturday*** ~~Monday to Sunday~~, inclusive.

10. **Amend Article 19.06, as indicated in bold, italics and strikethrough, as follows:**

    Employees required to act as jurors or crown witnesses shall be granted a leave of absence with pay and without loss of seniority or benefits, for this purpose. The Region shall pay the employee their full basic wage or salary for the period of such service, provided that the employee shall turn over to the Region's ***Finance Department*** ~~at Corporate Services - Human Resources~~ the full amount of compensation received for said service, excluding payment for travelling and meals, and provided the employee presents official proof of both service and payment thereof.

11. Amend Article 19.11(a), as indicated in bold and italics, as follows:

Pregnancy leave will be granted in accordance with the provisions of the Employment Standards Act, except where amended in this provision. The service requirement for eligibility for pregnancy leave shall be thirteen (13) weeks of continuous service ***prior to the employee's expected due date.***

12. Amend Article 19.11(e), as indicated in strikethrough, as follows:

An employee who is on pregnancy leave as provided under this Agreement who has applied for and is in receipt of Employment Insurance pregnancy benefits, pursuant to ~~Section 12 of~~ the Employment Insurance Act, shall be paid a supplemental employment benefit for a period not exceeding fifteen (15) weeks. That benefit will be equivalent to the difference between seventy-eight percent (78%) of their normal weekly earnings and the sum of the maximum weekly Employment Insurance benefits available to them during that fifteen (15) week pregnancy benefit period and any other earnings. Such payment shall commence following completion of the one (1) week Employment Insurance waiting period. Receipt by the Employer of the employee's Employment Insurance current claim information page shall constitute as proof that they are in receipt of Employment Insurance pregnancy benefits, and shall continue for a maximum period of fifteen (15) weeks. The employee's regular earnings shall be determined by multiplying their regular hourly rate on their last day worked prior to the commencement of the leave times their normal weekly hours.

13. Amend Article 19.12(a), as indicated in bold and italics, as follows:

Parental leave will be granted in accordance with the provisions of the Employment Standards Act, except where amended in this provision. The service requirement for eligibility for parental leave shall be thirteen (13) weeks of continuous service ***prior to the effective date of parental leave.***

14. Amend Article 23.03, as indicated in bold, italics and strikethrough, as follows:

The parties agree that the Employment Insurance premium reduction will accrue to the Region to offset increases in benefit costs. The Region will provide to the Union ***and the Secretary Treasurer*** annually, an accounting of the ***premium reduction savings*** ~~cost savings~~ achieved as a result of this provision.

15. Effective January 1, 2025, Delete Article 26 and replace with the following:

Employees who drive their personal vehicle for work-related purposes shall be reimbursed upon the submission of a casual expense claim in accordance with the Region's employee reimbursement policies. Such employees will certify to the Employer that they are properly licensed and insured in accordance with Regional policies.

In order to remain a non-taxable payment the rates will be increased or decreased if the reasonable rates as determined by the Department of Finance Canada are amended.

16. Amend Article 28.02, as indicated in bold and italics, as follows:

The Union shall be notified in writing monthly of all hirings, layoffs, recalls, and terminations of employment, with respect to positions covered by the Collective Agreement. ***This notification shall include the department, division and work location of the affected members.***

17. Amend Article 28.04, as indicated in bold and italics, as follows:

The Region shall retain the responsibility and the right to determine the methods through which municipal services are provided. However, in the event that a regular employee***, who has successfully completed their probationary period,*** ~~with three (3) years service~~ is displaced from their job by technological change, the Region will take one or a combination of the following actions:...

18. Amend Article 30.02, as indicated in bold and italics, as follows:

Probationary Employees
Probationary employees are those hired for regular full-time positions, and who have not completed probationary service of six (6) continuous calendar months. Such employees shall not be subject to the provisions of this Agreement except for: - ***Article 1 – Purpose; Article 2 – Management Functions; Article 3 – Recognition and Negotiations***; Article 4 - Check-

Off of Union Dues; Article 5 – No Discrimination; Article 10 - Safety; Article 15 - Hours of Work; Article 16 - Overtime; Article 17 - Call Back and Standby; ***Article 18 – Clothing and Equipment*;** Clause 19.04 of Article 19 - Leave of Absence; Article 20 - Designated Holidays; Article 21 - Vacations with Pay; Article 22 - Sick Leave; Article 23 - Benefits; Article 26 - Vehicle Allowance; Article 27 - Relieving In Other Grades; Article 29 - Wage Schedule & Classifications; and other than these Articles, shall not have recourse to the grievance procedure or arbitration during their employment or upon termination thereof. During the probationary period employees may be disciplined or terminated at the sole discretion of the Region whose decision shall be final. Absence in excess of ten (10) working days for any reason during probationary service shall be added to the probationary period. Employees retained past the probationary period shall be placed on the seniority list and credited.

19. Amend Appendix D, Article 15(5), as indicated in bold and italics, as follows:

Work for part-time employees shall be distributed as equitably as possible. ~~The pre-planned~~ **S**hifts will be offered one shift at a time on a rotating seniority basis commencing with the most senior and available employee on the list.

20. Amend Appendix D, Article 21(7) as indicated in bold and italics, as follows:

If an employee cancels an approved vacation, they must submit a request to re-book that vacation time, within fourteen (14) days, which will be approved in accordance with this Article. There shall be no vacation carry-over except as provided in the Collective Agreement. Vacation will not be paid out.

21. Amend Appendix D, Other Conditions (3) as indicated in bold, italics and strikethrough, as follows:

Paramedics who are required to appear in Court or Coroner's inquiries, beyond their normal hours of work, on matters arising out of their employment, shall be compensated at the applicable rate of pay upon proof of attendance. The employee shall turn over to ***the Region's Finance Department*** ~~Region at Corporate Services - Human Resources~~ the full amount of compensation received for said appearance, excluding payment for travelling and meals, and provided the employee presents official proof of both service and payment thereof.

22. Introduce Appendix D, Article 30 (1)(j), as indicated in bold and italics, as follows:

On a quarterly basis, management will post an updated hours worked list for Part-Time paramedics on Moodle, or another electronic platform designated by management. This list is posted as a courtesy only and shall not be construed or relied on as the seniority list, which is updated and posted twice a year in accordance with Article 11.04.

23. Renew LOU re Request for Proposal ("RFP")/Business Ventures, Disclosures/Accreditation Requirements.

24. Delete LOU re Primary Care Outreach Program ("PCOP") and replace with PCOP LOU signed on February 23, 2023.(Feb 7 2023)

25. Append LOU re Designated Holidays-LTC Clerk 2 dated May 9, 2019 to the Collective Agreement.

26. Renew MOA re Grandfathered Rates (Pertaining to the Job Study Implemented in 2003).

27. Delete MOA re Casual Staff.

28. Delete MOA re Provincial Offences Act (POA) pop-up clinics.

29. Renew MOA re CPA (Chartered Professional Accountants) designation.

30. Amend MOA re Mental Health Outreach, as indicated in bold and italics, as follows:

Whereas the creation of a new Family Counsellor 2 – Mental Health Outreach position has been established and approved by Regional Council to provide social work outreach services to vulnerable populations, including those who are unsheltered and under-housed, and who may have mental health and addiction challenges;

And whereas in addition to this new position, Family Services will assign an additional Family Counsellor 2 position to the Mental Health Outreach (total of two (2) positions) to work as a team;

And whereas the hours of work for the Family Counsellor 2 – Mental Health Outreach positions will consist of a thirty-five (35) hours per week schedule, consisting of five (5) shifts of seven (7) hours and one (1) hour unpaid meal break and will range between ~~8:30 a.m. and 6:30 p.m.~~ ***8:00 a.m. to 8:00 p.m.***

And whereas the normal hours of operation for the Family Services division is between 8:30 a.m. to 9:00 p.m. per Appendix E;

And whereas the Family Counsellor 2s shall work three (3) day shifts and two (2) evening shifts per week and these shifts shall remain consistent from week to week unless otherwise agreed to by the parties pursuant to Appendix E;

Now therefore the Parties Agree as Follows:

1. The Family Counsellor 2s – Mental Health Outreach positions will not be required to work the two mandatory evening shifts.

2. The Family Counsellor 2 – Mental Health Outreach positions will work the hours of thirty-five (35) hours per week schedule, consisting of five (5) shifts of seven (7) hours and one (1) hour unpaid meal break and will range between ~~8:30 a.m. and 6:30 p.m. *Note, the later shifts (to 6:30 p.m.) will be reserved for daylight savings time frame.~~ ~~8:30~~ ***8:00*** a.m. ***to 8:00 p.m.***
3. The Family Counsellor 2s are obligated to fulfil the assigned shift per the Mental Health Outreach requirements.
4. If the Mental Health Outreach assignment dissolves, then the Family Counsellor 2s will be expected to meet all requirements pertaining to hours of work per the Collective Agreement.
5. This agreement applies solely to the MHOP assignment as prescribed above and will be reviewed after one year of implementation to ensure MHOP is meeting the needs and expectations of the Family Services Division.
6. This agreement is without prejudice or precedent and in no way obliges the Family Services Division to continue the project.

31. Amend LOU re 311, as indicated in bold and italics, as follows:

Whereas Regional Council approved a report (2020-A-16), in July 2020, introducing a new customer experience program at the Region, myDurham 311;

And whereas the parties wish to make the transition for those staff impacted as seamless as possible;

And whereas the parties are desirous of working together and establishing a transition agreement that will not invoke the lay-off provisions of the Collective Agreement and will allow for a seamless transition.

Now therefore the parties agree as follows:

1. The parties agree that no employee impacted by myDurham 311 will be laid-off pursuant to Article 12 as a result of myDurham 311. Rather, the parties will collaborate on a transition procedure. In the event the parties are unable to agree to a transition procedure, the Region will proceed in accordance with the Collective Agreement and paragraph 2 of this Letter of Understanding, except the Region will not engage the lay-off (Article 12) or job posting procedure (Article 14) to affect the transition.

2. ~~Irrespective of Article 15.01, employees assigned to myDurham 311 will be scheduled to work between eight (8) a.m. and eight (8) p.m., Monday to Friday, at seven (7) hours per day and thirty-five (35) hours per week.~~ ***It is understood that Article 15.01 shall apply to employees of myDurham 311.***

The parties hereto executed these Agreed to Items in several counterparts and/or on behalf of the members of their respective teams and exchanged via email PDF on July 15, 2024.

For the Regional Municipality of Durham Pracst

Kelly McDermott on behalf of Region of Durham Management team

For CUPE, Local 1764

Debbie Provost
President Cupe Local 1764

Helen Gibb-Gavel
CUPE National Representative

TAB 2

IN THE MATTER OF NEGOTIATIONS

BETWEEN:

THE REGIONAL MUNICIPALITY OF DURHAM

(the "Employer")

- and -

THE CANADIAN UNION OF PUBLIC EMPLOYEES LOCAL 1764

(the "Union")

On September 19, 2024, the parties have agreed to the following amendments to the Collective Agreement:

1. **Note to Parties (Not to be incorporated into Collective Agreement):** The Employer is prepared to revise the current incident report form to advise management to forward a copy of any incident report involving a CUPE 1764 member to the Union's Health and Safety Officer.

2. **Amend Article 11.04, as indicated in bold and italics, as follows:**

   The Region shall maintain a seniority list showing the date upon which each employee's service commenced. An up to date seniority list shall be sent to the Union and posted on all bulletin boards and electronically on the intranet in January and July of each year. An ~~current~~ electronic copy of the seniority list will be forwarded to the Union ***twice a year*** ~~a quarterly basis~~.

3. **Amend Article 14.04, as indicated in bold and italics, as follows if agree to Appendix D, Article 14, No. 6 with the understanding this does not apply to the RDPS station bidding process:**

   An employee successful in a job posting application shall not be permitted to re apply to any subsequent job posting for a period of six (6) calendar months from the effective date of the appointment unless ***written*** approval is obtained from the employee's Department Head or their designate. An employee successful to a temporary vacancy shall not be permitted to fill any subsequent temporary vacancy that may arise during their initial temporary vacancy appointment. ***However, if the employee is in the last eight (8) weeks of the temporary vacancy they may apply to another position.***

4. **Introduce Article 15.04(s) as follows:**

   Employees in the Children's Service Division who are designated to work a split shifts will work two (2) three and a half (3.5) hour shifts per day. The split shift schedule will be pre-determined in accordance with operational needs, however, the Employer will not change a pre-determined split shift schedule with less than 96 hours' notice unless otherwise agreed to by the Employee.

5. **Introduce Article 19.13 as follows:**

   Workers experiencing domestic and/or sexual violence as defined by the Employment Standards Act, 2000, may utilize up to two (2) paid days, at their regular rate of pay, in accordance with Regional Policy on the same. This entitlement shall be in addition to any paid entitlements under the Employment Standards Act, 2000.

6. **Amend Article 23.05, as indicated in bold and italics, as follows:**

   ~~Employees who retire early (between age fifty-five (55) and sixty-five (65)) and achieve an OMERS ninety (90) factor, or thirty (30) years or more of service with an OMERS employer, and have at least fifteen (15) years of continuous Regional service at the time of retirement and who take a monthly OMERS retirement pension, will be provided with extended health and dental benefits up to the age of sixty-five (65). The cost of this program is paid by the Region.~~

   Employees who retire early (between age fifty-five (55) and sixty-five (65), and have at least fifteen (15) years of continuous Regional service at the time of retirement and who take a monthly OMERS retirement pension (unreduced or reduced), will be provided with extended health and dental benefits up to age of sixty-five (65). The cost of this program is paid by the Region.

7. **Amend Article 30.03, as indicated in bold and italics, as follows:**

   Temporary Employee

A temporary employee may be hired for a period not to exceed eighteen (18) calendar months plus vacation time for the specific purpose of replacing an employee on pregnancy/parental/adoption leave, WSIB or LTD, any approved leaves, or where the parties agree to augment the staffing complement to deal with an emergency beyond the control of the parties. A temporary employee may be hired for a period of up to eighteen (18) calendar months to work on projects. The above may be extended by the mutual agreement of the parties. Such employee shall not be subject to the provisions of this Agreement except for: - Article 2 - Management Functions; Article 4 - Check-Off of Union Dues; Article 5 - No Discrimination; ***Article 8- Grievance Process, save and except for termination of temporary employment;*** Article 10 - Safety; Article 15 - Hours of Work; Article 16 - Overtime; Article 17 - Call Back and Standby; Article 20 - Designated Holidays; paragraph. 21.03 of Article 21 - Vacations with Pay; Article 26 - Vehicle Allowance; Article 29 - Wage Schedule & Classifications; and other than these Articles shall not have recourse to the grievance procedure or arbitration during their employment or upon termination thereof. Such employees may be disciplined or terminated at the sole discretion of the Region whose decision shall be final.

If a temporary employee is successful in a bid to obtain a vacancy for a regular full-time position, they shall be credited with the total of their accumulated temporary service solely for the purpose of establishing:

A seniority date to be used **solely** for the purpose of transfers, promotions, layoffs and recall, all of which shall be subject to the governing Articles of this Agreement, and,

A service date to be used solely for the purpose of establishing vacation entitlement and qualification for payment for Designated Holidays.

The service credit and/or seniority date herein established shall **not** be used for any other purpose whatsoever. Also, it is understood and agreed that such service shall not count towards the completion of the six (6) month probationary period which shall be served in full and during which time the rights and privileges of this employee shall be the same as any other probationary employee.

8. **Effective on ratification by both parties, amend LOU re On-Call Employees in Children's Services as indicated in bold and italics as follows:**

Whereas the on-call/casual employees in the Children's Services Division ("On-calls") have historically been deemed exempt from the 1764 Collective Agreement ("CA");

And whereas the parties wish to establish terms for their inclusion into the scope of the CA;

Now therefore the parties agree as follows:

1. ~~Effective on ratification by both parties,~~ On-calls in Children's Services Division shall be deemed bargaining unit members and shall only be subject to the following terms of the Collective Agreement:

   Article 1 - Purpose

   Article 2 – Management Functions

   Article 3 – Recognition and Negotiations

   Article 4 – Check off of Union Dues

   Article 5 – No Discrimination

   Article 6 – No Strike or Lockout

   Article 8 – except that no grievance may be filed on any Article in the Collective Agreement other than those contained in this paragraph

   Article 10 – Safety

   Article 11- Seniority, determined by service date with the Region (i.e. most recent hire date with the Region), for the sole purpose of participating in job competitions for regular part-time, regular full-time and temporary positions.

   Article 14- Job Postings and Procedure

   Article 29.03 and 29.04-Wage Schedule and Classifications

   Article 31 – Duration

   Appendix A – Wages

2. All other terms and conditions of employment for the On-calls shall be governed by the *Employment Standards Act, 2000*, this Letter of Understanding and policies and procedures of the Children's Services Division, as may be amended from time to time.

a. **Renew LOU re Location Transfer.**

9. **Delete current language in Appendix E, and Introduce Article 15.04(q)**

[or last letter in article] as follows:

Hours of Work for Family Counsellors 1 and 2 and Adult Community Support Workers

The normal hours of work shall be thirty five (35) hours per week consisting of five (5) shifts of seven (7) hours and a one (1) hour unpaid meal break. The hours of operation shall be between 8:30 a.m. to 9:00 p.m.

Family Counsellors 1 and 2 shall work three (3) day shifts and two (2) evening shifts per week. These shifts shall remain consistent from week to week unless otherwise agreed to by the parties.

No Employee shall be scheduled to work more than one (1) Saturday in every four (4).

Adult Community Support Services Workers shall work with five (5) day shifts per week, but may be required to work up to one (1) night shift per week where the Employer has provided them with one (1) week's advance notice.

10. **Amend LOU re Saturday Walk-in Clinic as indicated in bold and italics, as follows:**

The Employer agrees to provide the Union with ~~thirty (30)~~ ***sixty (60)*** days written notice of its intention to introduce a Saturday Walk-In Clinic.

Prior to the ***sixty (60)*** ~~thirty (30)~~ day written notice, the Employer will meet with the Union to discuss the impact of the shifts on employee schedules.

11. **Renew MOA re Job Sharing.**

12. **Introduce LOU re Hybrid Teleworking Policy.**

The Employer supports a hybrid teleworking model where feasible, without compromising operational and business requirements, to provide a balance between in-office work, which is essential for nurturing a collaborative, connected and innovative organizational culture, while also prioritizing employee well-being and desire for flexibility to assist employees in meeting their work and personal responsibilities. As such, the Employer agrees to meet with and consult with the Union in the event the Region substantively changes its Region wide Hybrid Teleworking Policy. It is understood that the ultimate decision on the Policy rests with the Employer.

13. **Introduce LOU re RDPS Scheduling Transition as follows:**

WHEREAS the parties are interested in exploring scheduling options for the RDPS 911 operations for implementation in the 2026 calendar year;

AND WHEREAS the parties agree to the following process to agree upon and implement the selected schedule:

3. **Within 90 days of ratification, the Union shall present up to 4 schedule options, inclusive of a definition of a block, for RDPS 911 operations provided the schedule is:**
   a) **84 hours bi-weekly balanced across 4 or 8 week rotation;**
   b) **The shifts are 12 hours in duration;**
   c) **There are no flex shifts available.**
4. **The Union will facilitate a vote of its RDPS members assigned to front-line 911 operations by no later than June 1, 2025. The schedule with the most votes shall be implemented in the 2026 calendar year.**
5. **This schedule shall continue for the life of the Collective Agreement and until such time as the new Collective Agreement is ratified by both parties.**

14. **Introduce LOU on Peer Support as follows:**

The parties agree within ninety (90) days of ratification to schedule a joint meeting to discuss feasibility of peer support in departments within the bargaining unit.

The parties also agree to establish a Peer Support Steering Committee for RDPS. The Committee shall consist of two representatives from management and two from the Union and shall meet on a bi-annual basis, or as required. The purpose of the Committee is to review and modify the Peer Support Terms of Reference, requisite training, and recruitment.

15. **Delete MOA re Clerk at Oshawa Whitby Depot**
16. **Renew MOA re Grandfather Rates**

The parties hereto executed these Agreed to Items in several counterparts and/or on behalf of the members of their respective teams and exchanged via email PDF on September 19, 2024.

For the Regional Municipality of Durham

Kelly McDermott on behalf of Region of Durham Management team

For CUPE, Local 1764

Helen Gibb-Gavel

Debbie Provost

TAB 3

IN THE MATTER OF NEGOTIATIONS

BETWEEN:

THE REGIONAL MUNICIPALITY OF DURHAM

(the "Employer")

- and -

THE CANADIAN UNION OF PUBLIC EMPLOYEES LOCAL 1764

(the "Union")

On October 17, 2024, the parties have agreed to the following amendments to the Collective Agreement:

1. **Amend Article 15.04(a), as indicated in bold and italics, as follows:**

   Child Care employees, who shall be scheduled to work between six thirty (6:30) a.m. and six thirty (6:30) p.m., Monday to Friday inclusive at seven (7) hours per day, thirty-five (35) hours per week. ***It is understood that work shall not be offered Childcare employees when the Directly Operated Childcare Centres are closed and employees may use earned compensatory banks to cover the closures.***

2. **Amend Article 17.04, as indicated in bold and italics, as follows:**

   An employee designated to standby duty during other than normal hours of work will receive ~~thirty ($30)~~ ***thirty-five ($35)*** dollars per standby shift and where legislatively required, a top-up to ensure compliance with the minimum requirements of the Employment Standards Act, 2000, as may be amended from time to time. Effective January 1, ~~2022~~ ***2025***, an employee designated to standby duty during other than normal hours of work will receive ~~thirty-five ($35)~~ ***forty ($40)*** dollars per standby shift.

3. **Amend Article 17.06(a), as indicated in bold and italics, as follows:**

Employees who are assigned to a rotating shift schedule will be paid a shift premium if the shift commences between the hours of twelve (12) noon and two (2) a.m. The shift premium shall be ~~one-dollar ($1.00)~~ ***one-dollar and twenty-five cents ($1.25)*** per hour for the full shift and a shift premium of ~~one-dollar ($1.00)~~ ***one-dollar and twenty-five cents ($1.25)*** per hour for working a full midnight shift (between the hours 11 p.m. to 7 a.m.) for the Custodian and Facilities Maintenance Technician job classifications only. Effective January 1, ~~2022~~ ***2025***, both premiums shall increase to ~~one-dollar and twenty-five cents ($1.25)~~ ***two dollars ($2.00)*** per hour for the full shift.

4. **Amend Article 19.04(a), as indicated in bold and italics, as follows:**

An employee shall be granted time off for bereavement leave, without loss of pay, according to the schedule below, following the date of death of:

1. an employee's spouse or child or step-child, up to nine (9) consecutive days;
2. a ~~father, step-father, mother, step-mother~~, ***parent, step-parent, parent-in law*** ~~father-in-law, mother-in-law, sister, step-sister, brother, or step-brother~~ ***sibling or step-sibling***, up to ~~four (4)~~ ***five (5)*** consecutive days:
3. an employee's ~~grandmother, grandfather~~ ***grandparent*** ~~son-in-law, daughter-in-law~~, ***child in-law***, ***sibling in-law*** ~~sister-in-law, brother-in-law~~, or grandchild, up to two (2) consecutive days.

5. **Amend Article 20.01, as indicated in bold and italics, as follows:**

Regular, ***temporary*** and probationary employees shall be entitled to the following paid holidays ~~which shall also be granted to temporary employees~~:

New Year's Day	Labour Day
Family Day	Thanksgiving Day
Good Friday	Remembrance Day
Easter Monday	Half day at Christmas Eve
Victoria Day	Christmas Day
Canada Day	Boxing Day
Civic Holiday	Half day at New Year's Eve
National Day for Truth and Reconciliation	

and any national or provincial holiday declared by the Federal Government or the Government of Ontario.

Any full-time employee who is required to work on a designated holiday will be paid at time and half for hours worked on the day (and

double time on Christmas day) and shall receive a day in lieu of such holiday approved by management.

Any part-time, temporary and on-call/casual employee required to work on a designated holiday (or an Employment Standards holiday in the case of on-call/casual employees), will be paid at time and half for hours worked (and double time on Christmas day) and shall receive holiday pay at their regular rate of pay based on the average daily hours worked in the four weeks preceding the holiday.

6. **Amend Article 21.02, as indicated in bold and italics, as follows:**

All regular employees shall be entitled to vacation pay in accordance with credited service. Vacations shall be taken in the calendar year based on the employee's vacation entitlement as computed to May 31st of that same calendar year except that an employee shall become entitled to increased vacation entitlement after January 1st in the calendar year in which the first or subsequent anniversary of service falls. The increased entitlement for employees in which their first anniversary of service falls shall be on a prorated basis. ***Effective January 1, 2025, the vacation accrual period for new hires and those transferring into a regular full-time position will be from January 1st to December 31st. Any regular employees hired prior to January 1, 2025 who have not accrued three weeks of vacation, shall automatically be credited with three weeks of vacation as of January 1, 2025.***

7. **Amend Article 22.04, as indicated in bold and italics, as follows:**

Employees absent from work in excess of three (3) working days due to medical reasons must submit a ***note from a*** medical physician ***or a nurse practitioner*** ~~certificate~~ to cover the absence, and may at the discretion of the employee's manager be required to produce a physician's statement to cover any shorter period of absence due to medical reasons. Normally the physician's statement to cover absences of three (3) days or less will be asked for in advance. ***It is understood that the cost of such notes can be covered through the employee's health care spending account where applicable.***

8. **Amend Article 22.08, as indicated in bold and italics, as follows [Note to Union: cannot exceed 6 days because of EI Reg SOR 96/332 s 65(b)].:**

All employees will be allowed to use up to five (5) days per calendar year of their banked sick day credits or their STIPP sick leave benefits to deal with family/dependent issues. ***Effective the 2025 calendar year, increase to six (6) days per calendar year.***

9. Amend Article 23.01(a), as indicated in bold and italics, as follows:

Life Insurance - twice basic annual salary to a maximum insured amount of two hundred fifty-five thousand dollars ($255,000). Coverage to commence from sixth month of service. Effective January 1, ***2025*** ~~2022~~, increase the maximum insured amount to two hundred and ***seventy thousand dollars ($270,000).*** ~~fifty-five thousand dollars ($255,000).~~

10. Amend Article 23.01(b), as indicated in bold and italics, as follows:

Paid-up Life Insurance Policy for retired employees at age 65 or after OMERS 90 Factor, two thousand five hundred dollars ($2,500). ***Effective January 1, 2025, increase this amount to two thousand seven hundred and fifty dollars ($2,750).***

11. Amend Article 23.01(c), as indicated in bold and italics, as follows:

Accidental Death and Dismemberment - In the event of an accidental death the benefit is two times the annual salary up to a maximum insured amount of two hundred fifty-***five*** thousand dollars ***($255,000).*** Coverage to commence from sixth month of service. Effective January 1, ***2025*** ~~2022~~, increase the maximum insured amount to two hundred and ***seventy thousand dollars ($270,000).*** ~~fifty-five thousand dollars ($255,000).~~

12. Amend Article 23.01(d)(2),as indicated in bold and italics, as follows:

Drug Plan – one hundred percent (100%) reimbursement, no maximum limit; Each employee shall be issued an electronic drug card with a dispensing fee cap of ten dollars ($10.00) per prescription. ***Effective January 1, 2025, this cap shall increase to eleven dollars ($11.00).*** There shall be mandatory generic drug substitution unless otherwise prescribed by a physician.

13. Amend Article 23.01(d)(8), as indicated in bold and italics, as follows:

Psychology (provided by the following registered psychological practitioners: occupational therapist and social worker (when related to mental health support/treatment), psychotherapist and psychologist): combined maximum, for all of the above noted registered psychological practitioners, of three thousand dollars ($3,000) in a calendar year for each covered person, subject to reasonable and customary charges. ***Effective January 1, 2025, increase this amount to three thousand and five hundred dollars ($3500) in a calendar year for each covered person, subject to reasonable and customary charges.***

14. Amend Article 23.01(e), as indicated in bold and italics, as follows:

Long Term Disability - payable at sixty-six and two thirds percent (66-2/3%) of basic earnings (fully integrated with government benefits) to a maximum of seven thousand five hundred dollars ($7,500) per month. ***Effective January 1, 2025, increase this maximum to seven thousand seven hundred dollars ($7,700) per month.*** Benefits to commence from one hundred eighty-first (181st) day of disability. Coverage to commence from the sixth (6th) month of service.

15. Amend Article 23.01(f), as indicated in bold and italics, as follows:

Orthodontal - co-insurance with plan paying fifty percent (50%) and employee fifty percent (50%), dependent children only, lifetime maximum of three thousand dollars ($3,000) per child. ***Effective January 1, 2025, increase this lifetime maximum to three thousand two-hundred and fifty dollars ($3,250) per child.***

16. Amend Article 23.01(h), as indicated in bold and italics, as follows:

Health Care Spending Account ***("HSCA"):*** three hundred dollars ($300) annually in accordance with the Canada Revenue Agency Guidelines. ~~Revenue Canada Guidelines~~. ***Effective January 1, 2025, increase this amount to four hundred and fifty dollars ($450) annually. Effective January 1, 2026, employees may use all or part of their HSCA, in increments of $25 dollars, towards a Wellness Spending Account administered by the Region's insurer and utilized in accordance with Canada Revenue Agency Guidelines.***

17. Amend Article 23.06, as indicated in bold and italics, as follows:

Employees over the age of sixty-five (65) shall be excluded from ~~Articles~~ ***Article*** ~~23.01(c),~~ 23.01(e). ~~Such employees shall also be excluded from Article 23.01(a), except that they will be entitled to a twenty thousand dollars ($20,000) life insurance policy paid for by the employer up to and including age seventy-five (75).~~ ***Employees over the age of seventy-five (75) shall be excluded from Articles 23.01(a) and 23.01(c).***

18. Amend Article 30.04 (g), as indicated in bold and italics, as follows:

Article 23 Benefits, except that part time employees shall be entitled on an optional basis to participate in the major medical insurance plan (paragraph 23.01 (d), ***HSCA (paragraph 23.01(h))*** and pension plan (paragraph 23.04) only.

19. Amend Appendix D, Article 16(1), as indicated in bold and italics, as

follows and Notice to Union that the Employer will only pay overtime based on all time "worked"; which is not commiserate with all time paid. Any estoppels with respect to past practice shall hereby come to an end:

All time worked beyond the normal work day, the normal work week or on a holiday shall be considered overtime ***at a rate of time and half, including any overtime performed on a Sunday***. Notwithstanding clause 16.03, for those employees whose regular shift falls on a Sunday or Saturday, such shift will be paid at a regular rate of pay. In the case of part-time paramedics, time worked in excess of eighty-four (84) hours in a pay period or in excess of any assigned shift provided the shift is eight (8) hours or greater in duration shall be considered overtime. It is understood that such overtime shall not pyramid in accordance with Article 16.05.

20. **Introduce Appendix D, Article 20 (4) as follows:**

Paramedics required to work on Christmas Day will be paid at double the straight time rate.

21. **Amend Appendix D, Other Conditions (1) as follows:**

~~1. Meal Breaks: The Region agrees to pay a meal allowance of $16.00 where the following criterion is met:~~

- ~~The paramedic has not been afforded the opportunity to return to any RDPS station to acquire an uninterrupted thirty (30) minute meal break within the four (4) and seven and one-half (7.5) hour window and, subject to divisional policy, has contacted the on-duty Shift Superintendent. Effective January 1st, 2022,~~ a paramedic on a twelve (12)-hour shift who has not been afforded the opportunity to return to any RDPS station to acquire two uninterrupted thirty (30) minute meal breaks: 1) between the third (3rd) and sixth (6th) hour of the paramedic's shift; and 2) between the seventh (7th) and tenth (10th) hour of the paramedic's shift. The paramedic will contact their on-duty Shift Superintendent per divisional policy. The paramedic will be provided ***a fourteen-dollar ($14)*** ~~a thirteen dollar ($13)~~ meal allowance for each missed meal break in accordance with the criterion stated herein.
- It is understood that this provision shall not apply to special events.

The Employer shall make every effort to ensure that employees are afforded the opportunity to have an uninterrupted meal period within four (4) to seven and one-half (7.5) hours after the commencement of the shift (meal window).

22. Introduce LOU re Traffic Operations Centre as follows:

WHEREAS the Region is extending the hours of operation for the Traffic Operations Centres ("TOC") to include an afternoon shift (4:00 p.m. to 12:00 a.m. hereinafter referred to as the "Afternoon Shift") and a Saturday shift (10:00 a.m. to 6:00 p.m. hereinafter referred to as the "Saturday Shift");

AND WHEREAS the parties mutually wish to retain this work within the bargaining unit with a view to increasing the number of Technical Assistants employed by the Region.

NOW THEREFORE the parties agree as follows:

a) Effective January 1, 2025, the Region shall expand the hours of operation for the TOC to include evenings (up to 12:00 a.m.) and on Saturdays (10:00 a.m. to 6:00 p.m.). In order to staff these expanded hours the Region shall introduce a straight Afternoon Shift and Saturday Shift available only to the Technical Assistant job classification in Traffic. If a rotating shift is introduced in Traffic, the Technical Assistants will be eligible for the Article 17.06 premium.

b) Prior to the introduction of the new shift structure, the existing Technical Assistant will be given an option to maintain their current schedule or transfer to a new shift structure that provides coverage for the Afternoon Shift and Saturday Shift. If the existing staff wish to remain in their current schedules, the parties agree that any new hires into the Technical Assistant job classification shall automatically be placed on the new shift structure that ensures coverage for the Afternoon Shift and Saturday Shift.

23. Renew all LOU/MOA not already agreed to with understanding that (re MOA modified work/return to work) the Union President will be given automatic notice via Workforce of a medical leave and return to work from a medical leave for its members. It is understood that this will be an automated process and administrative errors can occur from time to time.

24. Renew Appendix F wage chart, but delete the reference to the lump sum payments given the salary grid has now caught up to the red circled group.

25. Introduce LOU re Special Teams in RDPS

Starting the 2025 calendar year, any paramedic who is recruited or appointed into a Tactical Unit, Community Paramedicine Program or Field Training Officer duties and actively work at least three months in a calendar year ("Special Teams"), shall automatically receive an annual lump sum payment of $1000, less applicable deductions, to be paid out in January of the following year.

26. Amend Schedule "A" to account for the following general wage increases:

- ***a. April 1, 2024 3.75%***
- ***b. April 1, 2025 3.25%***
- ***c. April 1, 2026 3.25%***

For the Regional Municipality of Durham	For CUPE, Local 1764